

HOUSE No. 5332

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing a vacancy in the office of mayor in the city of Holyoke.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>3/31/2026</i>

HOUSE No. 5332

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 5332) of Patricia A. Duffy (with the approval of the mayor and city council) relative to electing certain city officials and filling related vacancies. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing a vacancy in the office of mayor in the city of Holyoke.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 6 of the City of Holyoke Charter shall be amended by deleting the
2 references to the city treasurer and replacing it in full with the following):

3 “Sec. 6. - Election of city officials; failure to elect; vacancies; disability of clerk.

4 At such municipal election the qualified voters shall give in their votes by ballot for
5 mayor, city clerk, members of the city council and of the school committee, or of such of them as
6 are to be elected, and the person receiving the highest number of votes for any office shall be
7 deemed and declared to be elected to such office, and whenever two or more persons are to be
8 elected to the same office the several persons, up to the number required to be chosen, receiving
9 the highest number of votes shall be deemed and declared to be elected. If it shall appear that
10 there is no choice of a mayor, or if the person elected mayor shall refuse to accept the office, or
11 shall die before qualifying, or if a vacancy in said office shall occur more than six months

12 previous to the expiration of the municipal year, the city council shall forthwith call meetings for
13 a new election, and the same proceedings shall be had in all respects as hereinbefore provided for
14 the election of a mayor, and shall be repeated until the election of a mayor is completed. If the
15 full number of members of the city council has not been elected, or if a vacancy in the office of
16 councilor shall occur more than six months previous to the expiration of the municipal year, the
17 city council may forthwith elect a person to fill such vacancy until the next election. In case a
18 vacancy in the office of mayor shall occur within the six months previous to the expiration of the
19 municipal year the city council may in its discretion call meetings for the holding of a new
20 election as aforesaid to fill such vacancy. In case of a vacancy in the office of city clerk, the city
21 council shall elect a city clerk to fill such vacancy until the next municipal year; and in case of
22 any disability in the city clerk to perform the duties required by this act or by law, the city
23 council shall elect a city clerk pro tempore. In each of such cases the city clerk shall be sworn
24 and shall perform such duties..”

25 SECTION 2: The General Court may make clerical or editorial changes of form only to
26 the bill, unless the Mayor and City Council approve amendments before enactment by the
27 General Court. The Mayor and City Council are hereby authorized to approve amendments
28 which shall be within the scope of the general public objectives of this petition.

29 SECTION 3: This act shall take effect immediately upon passage.